

Haleem Asgar v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 19 January 2015 · Criminal Misc. Writ Petition No. 766 of 2015 · Criminal Misc. Writ Petition No. 766 of 2015 · **FIR under s.135 not quashed; arrest to follow CrPC 41/41-A; compounding available under the Code and s.152.**

HEADNOTE

Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003 that disclosed a cognizable offence. Arrest, if made for an offence not entailing more than seven years' imprisonment, must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. Compounding may be sought under the Electricity Supply Code, 2005 and Section 152 of the Act.

FACTUAL SUMMARY

Haleem Asgar filed a criminal writ seeking to quash the FIR dated 8 December 2014 registered as Case Crime No. 272 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Philkhana, District Kanpur Nagar. He had not been arrested. Counsel submitted that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

FIR quash, arrest safeguards and compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not liable to be quashed. Where arrest has not been made and the offence will not entail a sentence of more than seven years, police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. if arrest is to be effectuated. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Act. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003 that disclosed a cognizable offence. Arrest, if made for an offence not entailing more than seven years' imprisonment, must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.. ¶ 1